

MODULE 5 | QUICK REFERENCE

Recognising Sexual Harassment

Use this guide after the live learning session as a practical reference. Recognition requires more than spotting uncomfortable behaviour: a trainer should consider the nature of the conduct, whether it is unwelcome, the workplace context and the information available before drawing conclusions.

Start with the statutory lens

Section 2(n) of the POSH Act describes sexual harassment as one or more **unwelcome** acts or behaviour of a sexual nature, whether directly or by implication.

1. UNWELCOME

Was the conduct unwanted, objected to, uncomfortable in context, or continued despite a boundary? A trainer should not assume welcome or unwelcome merely from familiarity or a prior relationship.

2. SEXUAL IN NATURE

Does the conduct have a sexual character - physical, verbal, non-verbal or digital? Not every unpleasant workplace interaction is sexual harassment.

3. WORKPLACE CONTEXT

Did the conduct arise at, from or during work - including work travel, events, transport, virtual meetings, messages or other work-connected spaces?

Forms of conduct to recognise

PHYSICAL

Unwanted touching or physical contact; sexual advances; blocking or following where the conduct is sexual in nature.

VERBAL

Sexually coloured remarks; sexual jokes or innuendo; repeated sexual/personal propositions; sexualised comments about appearance or relationships.

NON-VERBAL / DIGITAL

Staring or ogling; sexually suggestive gestures or materials; pornography; unwelcome sexual messages, images or online conduct.

Two common patterns

QUID PRO QUO - "THIS FOR THAT"

A work-related benefit, opportunity or favourable treatment is linked - directly or indirectly - to sexual cooperation, or a detriment is threatened after refusal.

HOSTILE / INTIMIDATING ENVIRONMENT

Sexual conduct or related circumstances create an intimidating, offensive, humiliating or hostile work environment, or interfere with work, health or safety.

Remember: recognition is not the same as deciding a complaint.

MODULE 5 | TRAINER TOOLKIT

Grey Areas: Pause Before You Label

Future POSH trainers will often be asked “Is this sexual harassment?” before enough facts are available. Use the questions below to structure the discussion, identify what is known and recognise what still needs clarification.

1. Is the conduct sexual in nature?
2. What indicates that the conduct was unwelcome?
3. What is the workplace or work-related connection?
4. Was there repetition, escalation or continuation after a boundary was communicated?
5. Is there a hierarchy, dependency or other power imbalance?
6. What relevant messages, documents, witnesses or surrounding context may exist?
7. Could the behaviour also fall under another workplace policy or management process?
8. What information is still missing before a fair conclusion can be reached?

Important Nuances

- Consent may change or be withdrawn. Previously welcome conduct may later become unwelcome.
- A consensual workplace relationship is not automatically sexual harassment, although separate professionalism or conflict-of-interest issues may arise.
- Performance feedback, deadlines, work pressure or ordinary exercise of management rights are not automatically sexual harassment simply because they are unwelcome.
- Intent is not a statutory element by itself. Avoid reducing the analysis to “they did not mean it” or “it was only a joke”.
- In training, help learners identify indicators and process - do not turn a classroom scenario into a final legal finding on incomplete facts.

Trainer Takeaway

A strong POSH trainer teaches people to recognise concerns early while preserving fairness. The goal is not instant labelling; it is to understand the behaviour, context, boundaries and appropriate next step.

Levitare PeopleSoft | POSH Train-the-Trainer Certification | Module 5 Resource